



BKM INDUSTRIES LIMITED

Prevention of Sexual Harassment at the Workplace Policy

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Applicable legal and regulatory framework

This Policy shall be read with the following principal requirements, each as amended, replaced, saved or brought into force from time to time:

- Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013
- Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Rules, 2013
- Companies Act, 2013 and applicable annual-report/workplace disclosure requirements
- Applicable service rules and other criminal, labour and anti-discrimination laws

STATUTORY OVERRIDE

If this Policy is inconsistent with a mandatory law, regulation, rule, circular, stock-exchange direction or judicial order, the mandatory requirement prevails. A more beneficial statutory employment benefit also prevails.

Statutory procedure controls

Control	Statutory standard
Internal Committee	Presiding Officer who is a senior woman employee, at least two eligible employee members and one external member; at least half the members must be women; tenure not more than three years
Complaint	Within 3 months of the incident or last incident; IC may extend by up to 3 further months for recorded reasons
Conciliation	Only at the written request of the aggrieved woman; no monetary settlement as its basis
Inquiry	Complete within 90 days, following natural justice and the applicable service-rule procedure
Report	Provide to the employer and parties within 10 days of completion

Control	Statutory standard
Employer action	Act on recommendations within 60 days
Appeal	Within 90 days to the prescribed forum

- The employer shall display the penal consequences of sexual harassment and the order constituting the IC, organise awareness programmes and facilitate the IC.
- The IC shall prepare the prescribed annual report; the employer shall include required case information in its annual report or notify the District Officer where applicable.
- Complaint contents, identities, proceedings, recommendations and action are confidential, subject only to disclosures authorised by law.

Policy provisions

Policy Statement

BKM Industries Limited ("Company") is committed to providing a safe, secure, inclusive, respectful, and equitable work environment where every individual is treated with dignity and respect.

The Company has zero tolerance for any form of sexual harassment and is committed to preventing, prohibiting, and redressing sexual harassment at the workplace in accordance with the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 ("POSH Act") and applicable laws.

The Company believes that all employees have the right to work in an environment free from intimidation, hostility, discrimination, harassment, retaliation, or inappropriate conduct of a sexual nature.

This Policy aims to:

- Prevent incidents of sexual harassment.
- Provide an effective grievance redressal mechanism.
- Promote awareness and sensitivity.
- Ensure fair, impartial, and timely inquiry of complaints.
- Protect the dignity, privacy, and rights of all parties involved.

Objectives

The objectives of this Policy are to:

- Create and maintain a workplace free from sexual harassment.
- Define unacceptable conduct and behaviors.
- Encourage reporting of concerns without fear of retaliation.
- Provide procedures for receiving, investigating, and resolving complaints.
- Ensure compliance with statutory obligations under the POSH Act, 2013.

Applicability

This Policy applies to all employees and individuals associated with the Company, including:

- Permanent employees

- Probationers
- Trainees and apprentices
- Contractual employees
- Consultants
- Retainers
- Interns (paid or unpaid)
- Directors
- Agency staff
- Casual workers
- Visitors
- Vendors and suppliers
- Customers, clients, and business associates interacting with employees

The statutory complaint and inquiry mechanism under the POSH Act is available to an aggrieved woman as defined by that Act. The Company's behavioural standards apply to every person regardless of gender, position, grade, employment status or location; a person outside the statutory jurisdiction of the Internal Committee may use the ethics, grievance or whistleblower channel, without limiting any legal remedy.

Coverage Of Workplace

For the purpose of this Policy, "Workplace" includes:

- All Company offices, factories, plants, warehouses, and branches.
- Any location visited by an employee arising out of or during employment.
- Client locations.
- Business travel and transportation provided by the Company.
- Training programs, conferences, meetings, seminars, and workshops.
- Company-sponsored events, celebrations, and social gatherings.
- Virtual workplaces including:

Official emails

Video conferences

Collaboration platforms

Messaging applications

Work-related social media interactions

Definition Of Sexual Harassment

Sexual Harassment includes any one or more of the following unwelcome acts or behaviour (whether directly or by implication):

- Physical contact and advances;
- Demand or request for sexual favours;
- Making sexually coloured remarks;
- Showing pornography;
- Any other unwelcome physical, verbal or non-verbal conduct of a sexual nature.

Quid Pro Quo Harassment

Where employment decisions or workplace benefits are linked directly or indirectly to acceptance of sexual advances, including:

- Hiring
- Promotion
- Salary increase
- Performance evaluation
- Transfers
- Training opportunities
- Continued employment

Hostile Work Environment

Conduct that creates an intimidating, hostile, humiliating, offensive, or unsafe work environment affecting an individual's dignity or ability to work.

What Does Not Constitute Sexual Harassment

The following, by themselves, may not amount to sexual harassment unless accompanied by unwelcome sexual conduct:

- Legitimate performance management.
- Constructive workplace feedback.
- Reasonable disciplinary action.
- Assignment of work duties.
- Professional disagreements.

Rights And Responsibilities

Employee Responsibilities

Every employee shall:

- Treat colleagues with dignity and respect.
- Refrain from any conduct that may constitute sexual harassment.
- Participate in awareness programs and training.
- Report incidents witnessed or experienced.
- Cooperate during inquiries.

Management Responsibilities

Management shall:

- Promote a safe workplace culture.
- Ensure awareness of this Policy.
- Support the functioning of the Internal Committee.
- Prevent retaliation against complainants, witnesses, or Committee members.
- Implement recommendations of the Internal Committee within prescribed timelines.

Internal Committee (IC)

The Company shall constitute an Internal Committee ("IC") by written order at every office or administrative unit with ten or more employees, and at each required establishment, in accordance with section 4 of the POSH Act.

The Internal Committee shall consist of:

Presiding Officer

A senior woman employee nominated by the Company.

Employee Members

At least two employees committed to the cause of women or having experience in social work, legal knowledge, employee welfare, diversity, or workplace ethics.

External Member

One external member from an NGO, association, legal profession, or person familiar with issues relating to sexual harassment.

Composition Requirement

At least fifty percent (50%) of the members shall be women.

The tenure of members shall not exceed three years from the date of nomination.

The names and contact details of IC members shall be displayed prominently at all workplaces and on the Company's intranet, wherever available.

Filing A Complaint

Any aggrieved woman may submit a written complaint to the Internal Committee within three (3) months from the date of the incident.

Where a series of incidents has occurred, the complaint may be filed within three (3) months from the date of the last incident.

The Internal Committee may extend the limitation period by a further three (3) months if it is satisfied that circumstances prevented timely filing.

Where the complainant is unable to submit a written complaint, reasonable assistance shall be provided by the Internal Committee.

In the event of physical or mental incapacity or death of the complainant, the complaint may be filed by a legal heir, relative, friend, co-worker, or any person permitted under applicable law.

Conciliation

Before initiating an inquiry, the complainant may request conciliation.

Provided that:

- No monetary settlement shall form the basis of conciliation.
- Conciliation shall be voluntary.

- The terms of settlement shall be recorded and signed by both parties.
- No further inquiry shall be conducted unless the settlement terms are breached.

Inquiry Process

Upon receipt of a complaint, the Internal Committee shall:

Acknowledge receipt of the complaint.

Provide a copy of the complaint to the respondent.

Conduct a fair, impartial, and confidential inquiry.

Provide both parties a reasonable opportunity to present their case.

Examine documents, evidence, and witnesses.

Maintain records of proceedings.

The inquiry shall be completed within ninety (90) days from receipt of the complaint.

The principles of natural justice shall be followed throughout the inquiry process.

Interim Relief

During the pendency of the inquiry, the Internal Committee may recommend appropriate interim measures, including:

- Transfer of either party.
- Change in reporting structure.
- Grant of leave up to three months to the complainant.
- Temporary work-from-home arrangement, where feasible.
- Restriction on interaction between parties.
- Any other appropriate relief.

Inquiry Report

Upon completion of the inquiry:

- The Internal Committee shall prepare a reasoned written report.
- The report shall be submitted to the Employer within ten (10) days.
- Copies shall be made available to both parties.

The Employer shall act upon and implement the recommendations of the Internal Committee within sixty (60) days from receipt of the inquiry report in accordance with the provisions of the POSH Act.

Disciplinary Action

Where allegations are proved, disciplinary action may include:

- Written apology
- Warning or reprimand
- Mandatory counselling
- Sensitization training

- Adverse performance notation
- Withholding promotion or increment
- Suspension
- Transfer
- Termination of employment
- Any other action as per Company rules and applicable law

The Company may also deduct compensation payable to the aggrieved person in accordance with the POSH Act.

Malicious Or False Complaints

If the Internal Committee concludes that a complaint was made with malicious intent or that false evidence was knowingly produced, it may recommend disciplinary action against the person concerned in accordance with applicable law.

However:

- Mere inability to substantiate a complaint shall not attract action.
- Lack of sufficient evidence shall not automatically imply malicious intent.

The Company recognizes that complaints may be made in good faith even where allegations are not ultimately proven.

Confidentiality

All parties involved shall maintain strict confidentiality regarding:

- Identity of the complainant
- Identity of the respondent
- Witness details
- Contents of the complaint
- Inquiry proceedings
- Recommendations and findings

Unauthorized disclosure may result in disciplinary action and penalties under applicable law.

Protection Against Retaliation

The Company prohibits retaliation against:

- Complainants
- Respondents
- Witnesses
- Internal Committee members
- Any person participating in proceedings

Retaliation includes:

- Threats
- Intimidation
- Harassment
- Adverse employment action
- Discrimination

- Victimization

Any retaliatory conduct shall attract disciplinary action.

Third-Party Harassment

Where sexual harassment is committed by a customer, vendor, consultant, contractor, visitor, or any third party, the Company shall take all reasonable steps to:

- Protect the affected employee.
- Assist in filing complaints with appropriate authorities.
- Restrict access of the offending person to Company premises.
- Take corrective and preventive measures.

Awareness And Training

The Company shall periodically:

- Conduct POSH awareness sessions.
- Organize training programs for employees.
- Provide specialized training to Internal Committee members.
- Display notices and educational materials regarding prevention of sexual harassment.

Records And Reporting

The Internal Committee shall maintain records of:

- Complaints received
- Inquiries conducted
- Actions taken
- Awareness programs organized

The Company shall include disclosures relating to POSH compliance in its Annual Report as required under applicable law.

Appeal

A person entitled to appeal may do so within ninety days of the recommendation or order, in accordance with section 18 of the POSH Act and the applicable service rules or prescribed appellate forum.

Policy Review

This Policy shall be reviewed periodically and may be amended by the Board of Directors to ensure compliance with applicable laws and evolving workplace practices.

Contact Details Of Internal Committee

The Company shall notify and display the names, email addresses, and contact details of the Internal Committee members from time to time through official communication and workplace notice boards.

Conclusion

BKM Industries Limited is committed to fostering a workplace culture built on dignity, mutual respect, equality, and professionalism. Every employee shares responsibility for maintaining a work environment free from sexual harassment and contributing to a safe and inclusive workplace for all.

Governance, monitoring and records

- Policy owner: Head – Human Resources / Internal Committee. The owner shall maintain procedures, registers, evidence and training appropriate to the control risks.
- Functional heads must escalate suspected breaches promptly and cooperate with drafts or investigations.
- Records must be accurate, access-controlled and retained for the longer of the statutory period, an applicable legal hold and the Company's Preservation Policy.
- A person who raises a concern in good faith is protected from retaliation, subject to the Company's whistleblower framework.

Review, approval and controlled disclosure

This Policy shall be reviewed annually and earlier on a material legal, regulatory, operational or organisational change. Amendments require approval by the Board of Directors unless a law permits a delegated, non-substantive update.

This is an internal controlled document. External disclosure is permitted only where required by law or specifically authorised through the Company's disclosure controls.